

Pier and Harbour Order (Seaham Harbour) Confirmation Act, 1952

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15 & 16 GEO. 6
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*Pier and Harbour Order
(Seaham Harbour)
Confirmation Act, 1952*

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CHAPTER xxvi

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Seaham Harbour.

[1st August 1952.]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Seaham Harbour) Confirmation Act 1952.

SCHEDULE

SEAHAM HARBOUR DOCK

Provisional Order to authorise the Seaham Harbour Dock Company to demand and take increased dues rates and charges in certain cases to provide for the revision of dues rates and charges and for other purposes.

Short and
collective titles.

1.—(1) This Order may be cited as the Seaham Harbour Dock Order 1952.

(2) The Act of 1898 the Seaham Harbour Dock Act 1908 the Seaham Harbour Dock Act 1917 the Act of 1920 the Seaham Harbour Dock Act 1923 and this Order may be cited together as the Seaham Harbour Dock Acts and Order 1898 to 1952.

Commencement.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order unless the context otherwise requires—

“the Act of 1898” and “the Act of 1920” mean respectively the Seaham Harbour Dock Act 1898 and the Seaham Harbour Dock Act 1920 ;

“authorised rates” means the dues rates and charges which the Company are for the time being authorised to levy demand take receive and recover in pursuance of the Act of 1898 as amended by the Act of 1920 and this Order or any order made under section 8 (Revision of rates) of this Order ;

“the Company” means the Seaham Harbour Dock Company ;

“the harbour” means the harbour as defined by the Act of 1898 ;

“the Harbours Clauses Act 1847” means the Harbours Docks and Piers Clauses Act 1847 ;

“the Minister” means the Minister of Transport ;

“seaplane” means a flying boat and any other aircraft designed to manœuvre on water.

Undertakers.

4. The Company shall be the undertakers for carrying this Order into execution.

Application of
Harbours
Clauses Act
1847 etc.

5.—(1) In the application to this Order of the Harbours Clauses Act 1847 the expression “the special Act” shall mean this Order.

(2) The definition of the word “vessel” in section 3 of the Harbours Clauses Act 1847 as incorporated with the Act of 1898 and this Order shall be deemed to include a seaplane on the surface of the water :

Provided that nothing in the Harbours Clauses Act 1847 or this Order shall in any circumstances require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

(3) Sections 12 and 13 16 to 19 and 84 to 87 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

6. Notwithstanding anything in the Act of 1898 the Company may demand and take—

Increase of
certain dues and
charges.

- (a) for or in respect of every vessel entering the harbour any sum not exceeding by more than one hundred and twenty-five per centum the rate applicable to such vessel specified in the Second Schedule to that Act which sum shall be paid at the time of such vessel's entry inwards or clearance or discharge outwards as the Company may require ;
- (b) for every ton of coal coke culm or stone coal which shall be shipped or unshipped received or delivered whether on any works of the Company or into or from any vessel within the harbour any sum not exceeding five pence and one halfpenny ;
- (c) for the shipment by the Company of coal coke or culm by means of drops staiths shipping machines or appliances or other machinery or works or conveniences any sum not exceeding five pence and one halfpenny per ton.

7.—(1) Subject to the provisions of the Civil Aviation Act 1949 or of any order made in pursuance thereof and to the provisions of this Order the Company may demand levy collect receive and recover in respect of seaplanes entering or using or leaving the harbour such reasonable rates as may from time to time be approved by the Minister which rates shall be in lieu of the authorised rates leviable by the Company on or in respect of vessels.

Rates for
seaplanes.

(2) The rates authorised by this section in respect of seaplanes shall be paid by or recoverable from either the owner or other person in charge of the seaplane as the Company may determine.

8.—(1) If it is represented by application in writing to the Minister—

Revision of
rates.

- (a) by any chamber of commerce or shipping or any representative body of traders or shipowners ; or
- (b) by any person who in the opinion of the Minister has a substantial interest in the trade of the harbour and is a proper person to make an application ; or
- (c) by the Company ;

that under the circumstances then existing the authorised rates should be revised in whole or in part the Minister if he thinks fit may make an order revising all or any of the authorised rates referred to in the application and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this subsection.

(2) An application made to the Minister under subsection (1) of this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application under subsection (1) of this section an order has been made or the Minister has decided not to make an order no further application for a revision of any of the rates to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall consult with any such bodies or persons as aforesaid as appear to him to be appropriate including the Company where they are not the applicants and for the purpose of ascertaining such bodies or persons may require public notice of the application to be given and where an objection to an application is made by the Company or by such body or person as aforesaid and is not withdrawn the Minister unless it appears to him that the objection is of a trivial nature shall cause an inquiry to be held in reference to the application.

(5) Subject to the proviso to this subsection the Minister shall not by an order under subsection (1) of this section make any such revision of the authorised rates as in his opinion would so far as can be estimated be likely to result in the annual revenue of the Company being insufficient or more than sufficient to enable the Company with efficient management of the undertaking to make adequate provision for paying all proper expenses of and connected with the working management and maintenance of the undertaking including interest on loan capital (regard being had by him to any capital which the Company may reasonably be expected to expend) making good depreciation providing for any contributions which the Company may reasonably and properly carry to any reserve fund contingency fund or sinking fund and meeting all other costs charges and expenses if any properly chargeable to revenue together with a reasonable return upon the paid-up share capital of the undertaking:

Provided that in any case where the Minister is satisfied that there are special circumstances affecting the undertaking taking into account its financial condition during such period preceding the date on which an application is made under subsection (1) of this section as the Minister considers to be appropriate the Minister may revise the authorised rates in such manner as he thinks just and reasonable with due allowance for such special circumstances notwithstanding that such revision is likely to result in the revenue of the Company being insufficient to enable the Company to make adequate provision for all of the matters referred to in the foregoing provisions of this subsection.

(6) The authorised rates as revised by an order under subsection (1) of this section shall not in any case be less than the maximum rates which the Company were authorised to levy demand take receive and recover under or by virtue of the Act of 1898.

(7) Subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply to inquiries which the Minister may cause to be held under this section as if they were an inquiry held in pursuance of subsection (1) of that section and the Company were a local authority.

(8) The power of the Minister to make an order under subsection (1) of this section shall be exercisable by statutory instrument.

9. As from the commencement of this Order—

Repeals.

(a) paragraphs (a) (b) and (c) of section 2 (As to increase of certain rates and charges authorised by Act of 1898) and section 5 (Periodical revision of rates and charges) of the Act of 1920 are hereby repealed ; and

(b) the Seaham Harbour (Increase of Charges) Order 1946 is hereby revoked.

10. All costs charges and expenses of and incidental to the preparing for and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Company. Costs of Order.

Table of Statutes referred to in this Act

Short title	Session and chapter
Harbours Docks and Piers Clauses Act 1847 ...	10 & 11 Vict. c. 27.
General Pier and Harbour Act 1861 ...	24 & 25 Vict. c. 45.
Seaham Harbour Dock Act 1898 ...	61 & 62 Vict. c. ccxxxvii.
Seaham Harbour Dock Act 1908 ...	8 Edw. 7. c. lii.
Seaham Harbour Dock Act 1917 ...	7 & 8 Geo. 5. c. xxxviii.
Seaham Harbour Dock Act 1920 ...	10 & 11 Geo. 5. c. xxxv.
Seaham Harbour Dock Act 1923 ...	13 & 14 Geo. 5. c. lxxxiv.
Civil Aviation Act 1949 ...	12 13 & 14 Geo. 6. c. 67.

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